

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

As prayed by learned counsel for the petitioner, place this petition as fresh on 14 February 2017.

The same of Sri Mangla Prasad Rai shall also be shown as counsel for the respondent in the cause list.

Order Date :- 9.2.2017

praveen.

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

As prayed by learned counsel for the petitioner, place this petition as fresh on 20 February 2017 to enable him to file an Amendment Application.

Order Date :- 14.2.2017

praveen.

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

As prayed for by learned counsel for the petitioner, place this petition as fresh on 22 February 2017.

Order Date :- 20.2.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta, J.

Hon'ble Abhai Kumar, J.

Petitioner may inform Sri Mangla Prasad Rai, learned counsel appearing for respondent no. 2 that matter would be taken up as fresh on 28 February 2017.

Place this petition as fresh on 28 February 2017.

Order Date :- 22.2.2017

Sanjeev

(Abhai Kumar, J.) (Dilip Gupta, J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

As prayed for by learned counsel for the petitioner, place this petition as fresh on 2 March 2017.

Order Date :- 28.2.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Sri Anand Bhaskar Srivastava, learned counsel appearing for the respondents prays for and is granted a week's time to seek instructions in the matter.

Place this petition on 10 March 2017.

Order Date :- 2.3.2017

sartaj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Learned counsel for the respondents prays for and is granted ten days' time to seek instructions as to whether the provisional assessment and the final assessment was made by the Department before issuing the citation.

Place this petition as fresh on 22 March 2017.

When the petition is next listed, the name of Sri A.B. Srivastava shall also be shown as counsel for the respondents.

Order Date :- 10.3.2017

GS

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C.,A.B.Srivastava,Mangla
Prasad Rai

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

As prayed for by learned counsel for the petitioner, place this petition as fresh on 24 March 2017.

Order Date :- 22.3.2017

GS

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 39

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C.,A.B.Srivastava,Mangla
Prasad Rai

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

The instructions that have been placed before the Court by Sri Anand Bhaskar Srivastava, learned counsel for the respondents-Department are absolutely vague and do not indicate whether any provisional assessment or final assessment was carried out. In such circumstances, we direct the Executive Engineer, Purvanchal vidyut Vitran Nigam Ltd. to appear before the Court on 3 April 2017 with the entire records so that the petition can be disposed of. The instructions be kept of record.

List this petition on 3 April 2017 as fresh.

Order Date :- 24.3.2017

sartaj

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 3

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C.,A.B.Srivastava,Mangla Prasad Rai

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Heard learned counsel for the petitioner and Shri Anand Bhaskar Srivastava, learned counsel appearing for the respondent no.2.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the recovery citation dated 4.1.2017 issued by respondent no.2.

Shri Anand Bhaskar Srivastava, learned counsel appearing for the respondent no.2, on the basis of instructions, states that the petitioner was caught for committing theft of electricity and therefore, a provisional assessment was made and when no objection was filed, a final assessment was prepared and on the basis of the same, demand notice was issued.

However, it is submitted that no notice or opportunity was afforded to the petitioner to object to the provisional assessment.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery citation cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned demand notice dated 4.1.2017 for recovery of electricity dues of Rs. 8,47,550/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. After considering the objection of the petitioner the final assessment order will be made, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 3.4.2017

Anand Sri./-

Court No. - 21

Case :- WRIT - C No. - 6189 of 2017

Petitioner :- Rishikesh Vishwakarma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C.,A.B.Srivastava,Mangla Prasad Rai

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Rohit Ranjan Agarwal,J.

Civil Misc. Correction Application No.406105 of 2017.

Heard learned Counsel for the petitioner.

The correction application is **allowed**.

The "Electricity dues of Rs.8,47,550/-" occurring in 2nd line of 7th paragraph of the order dated 3.4.2017 shall be read as "Electricity dues of Rs.84,750". As such, the order dated 3.4.2017 passed by the Court stands corrected.

Order Date :- 17.5.2019

S. Singh